

THE TWILIGHT OF JUDICIAL INDEPENDENCE—*PULLIAM v. ALLEN*

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Over 375 years ago, in the fifth year of the Reign of James I, Lord Justice Coke held, in *Floyd and Barker*¹, that a judge who presided over a murder trial at the Grand Session in the County of Anglessey was immune from conspiracy charges brought against him in the Court of Star Chamber by the defendant for the judge's conduct in the original action. Lord Coke, in a sweeping declaration, held that regardless of whether a defendant be convicted or acquitted,

[Y]et the Judge, be he Judge of Assise or a justice of peace, or any other Judge, being Judge by Commission and of record and sworn to justice, cannot be charged for conspiracy, for that which he did openly in Court as Judge or justice of the peace: and the law will not admit any proof against this vehement and violent presumption of law, that a justice sworn to do justice, will do injustice.²

Lord Coke stated that judges are accountable only to God and the King, and do not answer to any suggestion in the Star Chamber; "for this would tend to the scandal and subversion of all justice."³

This ringing affirmation of judicial immunity came at a time when the notion of judicial independence was articulated for the first time even against the king himself.⁴ Although Lord Coke believed the

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1. 77 Eng. Rep. 1305 (1607).

2. *Id.* at 1306.

3. *Id.* at 1307.

4. It was during the reign of James I that the issuance of writs of prohibition by the common law courts was called into question as an interference with the King's prerogative. All of the judges of the common law courts were called before the King after a writ of prohibition had been issued against the Court of High Commission (an ecclesiastical court). Archbishop Bancroft argued to the King that judges were but delegates of the King and that the monarch might at any time withdraw a case from the courts and decide it himself. Coke, who was the Lord Chief Justice of the Court of King's Bench, took issue with this view and stated, "The King in his own person cannot adjudge any case either criminal . . . or betwixt party and party. The King cannot take any cause out of any courts and give judgment upon it himself . . . and the judges are sworn to execute justice according to the law and constitution of England." The King responded to this radical assertion by asking in effect, "Does this mean that I shall be under the law, which it is treason to affirm?" To this question Coke answered with the famous phrase, "Bracton sayeth, quod Rex non debet esse sub homine, sed sub Deo et lege." The King responded with high indignation and offered to strike Coke